

25SMCV06820 25SMCV06820

County: los-angeles

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Case Number: 25SMCV06820 Hearing Date: September 10, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

NEW GLOBAL PROPERTIES, LLC,

Plaintiff,

v.

NAS NEGAHBAN, et al.,

Defendants.

Case No.: 25SMCV06820

Hearing Date: September 10, 2026

[TENTATIVE] ORDER RE:

PLAINTIFF'S MOTION TO

TAX COSTS

BACKGROUND

This is a breach of lease case. Plaintiff New Global Properties, LLC is the owner and lessor of a commercial building located at 1301 5th Street, Santa Monica, California 90401 (the "Premises"). Defendant West End Pub, Inc. dba Zanzibar (Tenant) assumed a written commercial lease for the Premises. Defendant 1301 Fifth Street LLC dba Canary executed a written guaranty of Tenant's obligations under the Lease. There were also individual defendants who signed a joint and several, unconditional guaranty of Tenant's obligations under the Lease, including Defendant Nas Negahban.

Plaintiff filed a proof of service indicating that Negahban was served by substitute service. Negahban filed a motion to quash service of summons because the service address has no relation to him. The Court granted Negahban's motion. The Court's order did not reference the award of any costs to Negahban. Negahban then filed a memorandum of costs seeking \$3,420.45, which includes \$435.00 in filing fees, \$235.45 in electronic filing and service fees, and \$2,750.00 in attorneys' fees.

This hearing is on Plaintiff's motion to tax costs. Plaintiff argues that Negahban is not a prevailing party and is not entitled to costs. The Court's order on the motion to quash service of summons did not dismiss the action or result in a judgment in favor of Negahban. Plaintiff is free to re-serve Negahban. Plaintiff also argues that even if there was authority to award costs, Negahban would not be entitled to attorneys' fees because there is no contract or statute that authorizes an award of fees when a defendant prevails on a motion to quash service of summons.

LEGAL STANDARD

Generally, a "prevailing party" is entitled to costs. (Code Civ. Proc., § 1032(b); *Santisas v. Goodin* (1998) 17 Cal.4th 599, 606.). "A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of mailing of the notice of entry of judgment... The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case." (Cal. Rules of Court, rule 3.1700.)

The losing party may contest the costs that a prevailing party seeks. (Code Civ. Proc., §1034(a).) The challenging party has the burden of demonstrating that those costs are unreasonable or unnecessary. (*Adams v. Ford Motor Co.*, (2011) 199 Cal. App. 4th 1475, 1486; 612; *South LLC v. Laconic Limited Partnership*, (2010) 184 Cal. App. 4th 1270, 1285.)

Code Civ. Proc. § 1033.5 sets forth the costs recoverable by the prevailing party. (Code Civ. Proc., § 1033.5.) "Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (Code Civ. Proc., §1033.5(c)(2); *Perko's Enterprises, Inc. v. RRNS Enterprises* (1992) 4 Cal.App.4th 238, 244.) A "properly verified memorandum of costs is considered prima facie evidence that the costs listed in the memorandum were necessarily incurred." (*Bach v. County of Butte* (1989) 215 Cal.App.3d 294, 308; see also *Hadley v. Krepel* (1985) 167 Cal.App.3d 677, 682.)

This puts the burden on the party seeking to tax costs to show that they were not reasonable or necessary. (*Ladas v. California State Automotive Assoc.* (1993) 19 Cal.App.4th 761, 773-74.) If items are properly objected to, they are put in issue, and the burden of proof is on the party claiming them as costs. (*Id.*)

The memorandum of costs need not contain invoices, billings, or statements. (*Bach*, 215 Cal.App.3d at 308; see also Cal. Rules of Court, Rule 3.1700(a)(1) (only verification required).) "Documentation must be submitted only when a party dissatisfied with the costs claimed in the memorandum challenges them by filing a motion to tax costs." (*Bach*, 215 Cal.App.3d at 308.)

DISCUSSION

As a threshold matter, the Court considers Defendant's argument that he was not properly served with the motion to tax costs because service was effectuated at 2708 Wilshire Blvd, Suite 424, Santa Monica, California 90403, which Defendant

maintains is a commercial mail receiving suite and not a valid address for service of process. However, 2708 Wilshire Blvd is the address Defendant provided to the Court, and is the same address the Clerk of the Court uses to mail documents to Defendant. Accordingly, the Court rejects Defendant's argument that service of the motion to tax costs was not proper.

Turning to the merits of the motion, Plaintiff argues that Defendant is not a prevailing party and is therefore not entitled to costs. The Court agrees.

A party's right to recover costs is governed by statute. (*Perko's Enterprises, Inc. v. RRNS Enterprises*, (1992) 4 Cal.App.4th 238, 241.) Under section 1032, subdivision (b), "[e]xcept as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." The term "prevailing party" includes "a defendant in whose favor a dismissal is entered." (§ 1032, subd. (a)(4), italics added.) A dismissal is entered when it is entered in the clerk's register. (§ 581d.)

Rule 870 of the California Rules of Court states that "[a] prevailing party who claims costs shall serve and file a memorandum of costs within 15 days after the date of mailing of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first." (Cal. Rules of Court, rule 870(a)(2), italics added.) Thus, rule 870 contemplates the entry of a dismissal or judgment as a predicate to a costs award. (See also Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2006) ¶ 11:38, p. 11-22 ["Ordinarily, a judgment or order must be entered upon which a costs award must be based"].)

Here, there was no dismissal or judgment entered. Rather, the Court granted a motion to quash service of summons. This order did not dismiss Plaintiff's complaint or enter judgment against Plaintiff. Accordingly, Negahban is not a prevailing party, and its memorandum of costs is premature.

Negahban argues that the Court has equitable discretion to award him costs because Plaintiff's service of the summons and complaint was defective. Negahban, however, cites no authority to support his position. His memorandum of costs cited only Code of Civil Procedure § 1028, Code of Civil Procedure § 1032, and California Rules of Court, Rule 3.1700 as his legal basis for seeking costs. There was no reference to the Court's equitable discretion to award costs.

As to the cited statutes, Section 1028 applies to an award of costs against the state and clearly does not apply as Plaintiff is not a state entity. As to Section 1032, as discussed above, it only allows a prevailing party to seek costs. And as to Rule 3.1700, it sets the deadline and procedures for a prevailing party to seek costs. Accordingly, none of the statutes cited by Negahban supports the award of costs.

CONCLUSION

Based on the foregoing, the Court GRANTS Plaintiff's motion to tax costs.

IT IS SO ORDERED.

DATED: September 10, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court